
North Coast Regional Water Quality Control Board

April 11, 2012

Mr. Mark Mathewson
Kendall-Jackson Winery LTD.
421 Aviation Blvd.
Santa Rosa, CA 95403

Dear Mr. Mathewson:

Subject: Enrollment in General Waste Discharge Requirements (State Water Board Order No. 97-10-DWQ) for the Kendall-Jackson Wine Center, Santa Rosa, Sonoma County

File: Kendall-Jackson Wine Center, Domestic WWTS
5007 Fulton Road, Santa Rosa, WDID No. 1B08022RSON

North Coast Regional Water Quality Control Board (Regional Water Board) staff has completed review of the report of waste discharge (ROWD) received April 25, 2008, and supplemental information received April 28, 2009, March 2, 2011 and January 20, 2012 for the proposed domestic waste on-site wastewater treatment system (OWTS) serving the Kendall-Jackson Wine Center facility located at 5007 Fulton Road in Santa Rosa. The ROWD was submitted on behalf of Kendall-Jackson Winery LTD (hereinafter Permittee), the owner and operator of the Kendall-Jackson Wine Center. Based on technical review of the application, Regional Water Board staff has determined that the proposed discharge qualifies for enrollment under State Water Resources Control Board Water Quality Order No. 97-10-DWQ, *General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (State Water Board Order No. 97-10-DWQ).

Project Description

The project involves the expansion of the existing Kendall-Jackson Wine Center (hereinafter Facility) and includes the construction of a new commercial kitchen, hospitality space, tasting room, administrative offices and a 20,000 case winery. The project will be constructed in phases. During the first phase of the project, two new on-

site wastewater treatment and disposal systems will be constructed, one designed for winery process water and one for domestic wastewater. The winery process wastewater system will be enrolled under Regional Water Board Order No. R1-2002-0012, *General Waste Discharge Requirements for Discharges of Winery Waste to Land*. As per this letter, the domestic wastewater system will be enrolled under State Water Board Order No. 97-10-DWQ.

The new domestic OWTS will receive waste from the commercial kitchen, the tasting room and bathrooms. The system will consist of a 15,000 gallon grease trap, grinder pump/lift station, 5,000 gallon recirculation tank, two Advantex filtration systems, a 2,000 gallon sump tank and a sub-surface drip disposal field. The OWTS has been designed to treat and dispose of a peak wastewater flow rate of 5,585 gallons per day (GPD). The sub-surface drip disposal field will be located in the vineyard north of the Advantex treatment systems and will be composed of two separate disposal zones. The septic tank/leach field system that currently treats domestic waste at the Facility will be decommissioned following installation and operation of the new OWTS.

Technical review of the submitted disposal area evaluation data, OWTS design plans, and the results of a nitrate analysis and groundwater mounding study indicates that the project is consistent with the North Coast Region's Water Quality Control Plan for the North Coast Region (Basin Plan) and meets the requirements for coverage under State Water Board Order No. 97-10-DWQ.

A condition of enrollment under State Water Board Order No. 97-10-DWQ is compliance with monitoring and reporting requirements in a Monitoring and Reporting Program (MRP). MRP No. R1-2012-0057 fulfills this requirement, and requires surface inspections of the disposal field area, groundwater monitoring, and routine reporting of monitoring results to the Regional Water Board.

CEQA Compliance

On March 27, 2007, a modification of existing Use Permit No. UPE89-11757, for the Facility, was conditionally approved by the Sonoma County Permit and Resource Management Department (Sonoma County PRMD). The modified Use Permit allows for operation of a winery with a maximum production capacity of 20,000 cases per year, construction of an 18,000 square foot production facility, a public wine tasting room and special events. A Mitigated Negative Declaration was prepared for the project and was subsequently adopted by Sonoma County Board of Zoning Adjustments on March 27, 2007. After conducting an Initial Study, the Sonoma County Board of Zoning Adjustments, acting as the California Environmental Quality Act (CEQA) Lead Agency, determined that the project would not have a significant, substantial adverse effect on the environment, provided the mitigation measures were incorporated into the project. Regional Water Board staff has considered the information submitted and finds that the potential water quality effects on the discharge from the proposed OWTS, as described

in the ROWD and as approved for coverage under State Water Board Order No. 97-10-DWQ, are less-than-significant.

In addition, the State Water Resources Control Board (State Water Board) adopted a Mitigated Negative Declaration on November 18, 1997 for small domestic wastewater systems enrolled under State Water Board Order No. 97-10-DWQ. In adopting State Water Board Order No. 97-10-DWQ, the State Water Board determined that potentially significant environmental impacts from discharges from small domestic wastewater systems would be mitigated to a level of insignificance by compliance with State Water Board Order No. 97-10-DWQ.

The following conditions, based on the project description contained in the ROWD and application, are to be followed at all times:

Site Specific Conditions

1. The Permittee shall not discharge waste in excess of the design treatment and disposal capacity of the OWTS.
2. The volume of wastewater entering the OWTS shall not exceed 5,585 gallons per day, as averaged over a calendar month reporting period.
3. The Permittee shall ensure that the subsurface drip disposal system is maintained so that at no time will sewage surface at any location.
4. There shall be no discharge of waste to any watercourse.
5. There shall be no discharge of waste to land not controlled by the Permittee.
6. The Permittee shall maintain a cover crop in the disposal area, as described in the ROWD.
7. An adequate replacement area equivalent to the initial disposal area shall be designated and reserved. Incompatible use of the initial disposal area or the replacement area is prohibited.
8. The Permittee shall allow the Regional Water Board and/or other authorized representatives, upon presentation of credentials and other documents as required by law to: 1) enter upon the Permittee's premises where a regulated facility or activity is conducted to inspect at reasonable times any facilities, equipment, practices, or operations regulated or required by this permit; 2) to sample or monitor at reasonable times for the purpose of assuring compliance to this permit; and 3) to have access to and copy, at reasonable times, any records that are required to be kept under the conditions of this permit.

9. All instances of noncompliance that may endanger public health or the environment shall be reported orally to the Regional Water Board as soon as possible, but no later than 2 hours from the time the Permittee becomes aware of the circumstances, and a written report shall be submitted such that an original signed written report is received by the Regional Water Board no later than five days after the event.
10. All reports required by this permit or other information requested by the Regional Water Board, or the State Water Board shall be signed by the Permittee's principal executive officer or a duly authorized representative of that person. Any person signing a document under this requirement shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted, is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations".
11. Except insofar as may be modified by any preceding conditions, this permit action is contingent on: a) the proposed OWTS being constructed and operated in strict compliance with the Permittee's project description, and; b) compliance with all applicable requirements of the Basin Plan.

Enclosed is a copy of State Water Board Order No. 97-10-DWQ (Enclosure 1) and MRP No. R1-2012-0057 (Enclosure 2). Enrollment under Order No. 97-10-DWQ is effective upon your receipt of this letter. Monitoring in accordance with MRP No. R1-2012-0057 should begin forthwith.

If you have any questions, please contact Rachel Prat of my staff at (707) 576-2542 or by email at rprat@waterboards.ca.gov.

Sincerely,

Original signed by

Catherine Kuhlman
Executive Officer

Enclosures:

- 1) State Water Board Order No. 97-10-DWQ
- 2) Monitoring and Reporting Program No. R1-2012-0057

cc: James Johnson, Sonoma County PRMD, 2550 Ventura Avenue,
Santa Rosa, CA 95403
Jon Tracy, Sonoma County PRMD, 2550 Ventura Avenue, Santa Rosa, CA 95403
Mr. David Long, Brelje & Race Consulting Engineers, 475 Aviation Blvd.,
Suite 120, Santa Rosa, CA 95403
Mr. Rob Huffman, Huffman Engineering & Surveying, 537 College Avenue,
Suite A, Santa Rosa, CA 95404
Mr. Sam Jamison, Jackson Family Wines, 1190 Kittyhawk Blvd.,
Santa Rosa, CA 95403

California Regional Water Quality Control Board
North Coast Region

MONITORING AND REPORTING PROGRAM NO. R1-2012-0057

FOR

KENDALL-JACKSON WINE CENTER

ONSITE WASTEWATER TREATMENT SYSTEM
WDID No. 1B08020RSON

Sonoma County

California Water Code section 13267 authorizes the Regional Water Quality Control Board (Regional Water Board) to require technical and monitoring reports. This monitoring and reporting program establishes monitoring and reporting requirements, which implement the state regulations. Any person failing to furnish technical or monitoring reports or falsifying any information therein is guilty of a misdemeanor, and may be subject to civil liability. (Water Code section 13268)

The purpose of this monitoring program is to ensure proper maintenance and long term operations of the domestic waste onsite wastewater treatment system (OWTS).

MONITORING

Kendall-Jackson Winery LTD (hereinafter Permittee) shall implement a monitoring and reporting program to document that the discharge is consistent with the complete report of waste discharge (ROWD) or equivalent documentation.

A. Wastewater Volumes

Influent

The volume of domestic wastewater being sent to the Advantex treatment units shall be recorded monthly. The volume should be reported both as the monthly total flow and as the average daily flow, in gallons per day. Volumes shall be reported in the quarterly monitoring report.

Effluent

The volume of effluent discharged to the disposal field shall be recorded monthly. The discharge volume shall be reported both as the monthly total flow and as the average daily flow, in gallons per day. Volumes shall be reported in the quarterly monitoring report.

B. Visual Inspections

Visual inspections of the grinder pump/lift station, Advantex treatment units, sump tank and disposal field shall take place at a minimum once a month. Results of the inspections including the presence of odors, evidence of surfacing effluent, or other signs of malfunction or improper operation shall be reported in the quarterly monitoring report.

C. Effluent

The treatment system performance shall be monitored quarterly for the constituents listed in Table 1. Samples shall be collected at a location following the Advantex treatment process and prior to disposal. Effluent results shall be reported in the quarterly monitoring report.

Table 1

Constituent	Units	Type of sample	Frequency
Total Kjeldahl Nitrogen	mg/L	Grab	Quarterly
Nitrate Nitrogen as N	mg/L	Grab	Quarterly

D. Groundwater

The purpose of groundwater monitoring is to determine compliance with water quality objectives for groundwater in the vicinity of the disposal field. Groundwater monitoring shall be conducted as follows:

Monitoring Well Construction

The three monitoring wells (one up-gradient and two down-gradient) shall be constructed as described in the ROWD and design plans. Within 60 days after completion of construction of the monitoring wells, the Permittee shall submit a report that includes but is not limited to, relevant subsurface stratigraphy and lithology, a diagram of each well showing total drilled depth, well installation depth, well construction details including screened interval, top of casing elevation, and location map of all installed wells.

Monitoring Locations

The monitoring wells shall be installed at appropriate locations and depths to yield groundwater samples that provide the data needed to evaluate changes in groundwater quality occurring as a result of the discharge to the disposal field. Samples shall be collected from the installed wells for the constituents specified in Table 2.

Groundwater Elevation Monitoring

The groundwater surface elevation in each monitoring well shall be measured on a quarterly basis, as specified in Table 2. The Permittee shall measure the groundwater surface elevation to the nearest 0.01 feet in each monitoring well prior to its purging and sampling. The following information shall be recorded for each monitoring well: top of well casing elevation, groundwater level elevation, and calculated depth to groundwater. A potentiometric map based on the recorded groundwater elevations of the monitoring wells shall be provided with each quarterly monitoring report. The map shall depict gradients and direction of groundwater flow in relation to the location of the three monitoring wells and the sub-surface drip disposal field.

Monitoring Schedule

At least one groundwater sample shall be collected quarterly from each monitoring well. The groundwater samples shall be analyzed for the constituents listed in Table 2.

Table 2

Constituent/Parameter	Units	Type of Sample	Frequency
Total Dissolved Solids	mg/L	Grab	Quarterly
Fecal Coliform Bacteria	MPN/100 mL	Grab	Quarterly
Nitrate Nitrogen (as N)	mg/L	Grab	Quarterly
Groundwater Elevation	Nearest 0.01 feet	Observation	Quarterly

REPORTING

A. Quarterly Report

For each quarter, a self-monitoring report shall be submitted to the Regional Water Board in accordance with the schedule cited in Table 3. The report shall be submitted by the first day of the second month following the end of the quarter.

Table 3

Reporting Period	Monitoring Period	Report Due Date
1 st Quarter	January 1 – March 31	May 1 st
2 nd Quarter	April 1 – June 30	August 1 st
3 rd Quarter	July 1- September 30	November 1 st
4 th Quarter	October 1 – December 31	February 1 st

All quarterly reports shall include a Letter of Transmittal. The letter should include the following information:

- a. Identification of facility: Name, address, Order number, and WDID number;
- b. Date of report and monitoring period;
- c. Identification of all violations of permit conditions found during the monitoring period;
- d. Details of the violations: parameters, magnitude, test results, frequency, and dates;
- e. The cause of the violation;
- f. Discussion of corrective actions taken or planned to resolve violations and prevent recurrence, and dates or time schedule of action implementation;
- g. Other relevant information including, but not limited to, incidents of wastewater treatment and collection system equipment failure, results of visual observations, reports of wastewater spills or overflows, and reports on lift tank and septic tank solids pumping, handling and disposal; and
- h. Authorized signature and certification statement.

B. Annual Report

By February 1st of each year, the Permittee shall submit an Annual Report. The Annual Report shall include an evaluation of the previous year's data, system performance in relation to design capacity, system maintenance and system alterations.

C. Report Submittal

Copies of quarterly monitoring reports and the annual report shall be mailed to:

North Coast Regional Water Quality Control Board
Attn: Rachel Prat
5550 Skylane Boulevard, Suite A
Santa Rosa, CA 95403

D. Certification

All reports required by this monitoring and reporting program or other information requested by the Regional Water Board or the State Water Resources Control Board shall be signed by the Permittee's principal executive officer or a duly authorized representative of that person. Any person signing a document under this requirement shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

Ordered by: Original signed by
Catherine Kuhlman
Executive Officer

April 11, 2012